

21STCV19052 21STCV19052

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-08-04

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Case Number: 21STCV19052 Hearing Date: August 4, 2026 Dept: 413

TENTATIVE RULING

Hearing

Date: August 4, 2026

S&I

Construction, Inc. v. Noah Tal, Case No. 21STCV19052

Ruling: Plaintiff's Request for Default

Judgment is denied. The deficiencies in the request for default judgment previously noted have not been corrected.

On May 28,

2026, the following deficiencies were noted:

Pursuant to California Rules

of Court, rule 3.1800, the use of CIV-100 to request default judgment is mandatory. While Plaintiff has filed a JUD-100 form, there is no CIV-100 requesting default judgment.

Plaintiff's JUD-100 requests

punitive damages without the FACC having made such a request. No allegations in the FACC state that Defendant Hazan acted with malice, fraud, or oppression. Furthermore, Plaintiffs proofs of service of Defendant Hazan fail to show that Hazan was served with a statement of damages and that the statement of damages was served before default was entered. (Code Civ. Proc. § 415.115(b); Civ. Code, § 3295(e).)

Plaintiff's requests attorney fees pursuant to Code of Civil Procedure Section 1033.5(a)(10), but fails to identify the statute, law or contract provision that allows Plaintiff to recover attorney fees.

A CIV-100 form has been filed, but no new proof of service regarding the Statement of Damages has been filed.

No further documents have been filed concerning Plaintiff's request for attorneys' fees. As previously noted, pursuant to Code of Civil Procedure section 1033.5 (a)(10), attorney's fees are allowable as costs when authorized by contract, statute, or law."